

Court No. - 39

Case :- WRIT - C No. - 18537 of 2023

Petitioner :- Hi Lead Infotech (Pvt.) Limited Through Its Director Sunil Kumar

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Abhishek Srivastava, Kartikeya Saran, Krishna Agarawal

Hon'ble Salil Kumar Rai, J.

Hon'ble Arun Kumar Singh Deshwal, J.

1. Heard learned counsel for the petitioner, Sri Ankit Prakash, learned counsel for respondent no.2 and learned Standing Counsel for the State.
2. The grievance of the petitioner in the present writ petition is regarding the estimate made by the Executive Engineer, Electricity Urban Distribution Division-III, Paschimanchal Vidyut Vitran Nigam Limited, Gautam Budh Nagar under Clause 4.6 of the Electricity Supply Code, 2005 (hereinafter referred to as the 'Code').
3. It has been stated by petitioner that the said estimate has been prepared by the Executive Engineer on the instructions of the Superintendent Engineer because the load was sanctioned by the Superintendent Engineer who is the appropriate authority for the purpose.
4. In view of the aforesaid facts, petitioner has a remedy to file objections before the Chief Engineer, Paschimanchal Vidyut Vitran Nigam Limited, Gautam Budh Nagar Region under Clause 4.6 of the Code.
5. It has been stated by learned counsel for the petitioner that an objection has already been filed before the Chief Engineer, Paschimanchal Vidyut Vitran Nigam Limited,

Gautam Budh Nagar. However, the said objection is not on record of the writ petition.

6. The petitioner may file fresh objections before the Chief Engineer, Paschimanchal Vidyut Vitran Nigam Limited, Gautam Budh Nagar, within a period of two weeks from today against the estimate of the Executive Engineer dated 22.12.2022 which shall be considered and decided by the Chief Engineer, within a period of two months and in any case by 15 August, 2023.

7. Petitioner also challenges the imposition of GST in the estimate prepared by the Executive Engineer. The Chief Engineer shall decide the objection regarding the imposition of GST in the estimate prepared by the Executive Engineer on the supplies purchased by the petitioner himself as the said imposition is also part of the estimate. The petitioner may raise objection regarding this also before the Chief Engineer, who shall decide the same in accordance with law.

8. With the aforesaid observations, the petition is **disposed of.**

Order Date :- 29.5.2023

S.Chaurasia